

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 536

BY LOCAL GOVERNMENT COMMITTEE

AN ACT

RELATING TO AGRICULTURAL PESTS; AMENDING SECTION 25-2601, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWER OF COUNTY COMMISSIONERS TO CONTROL AGRICULTURAL PESTS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 25-2601, Idaho Code, be, and the same is hereby amended to read as follows:

25-2601. CONTROL OF PESTS -- POWERS OF COUNTY COMMISSIONERS. The board of county commissioners of each and every county of this state are all hereby granted full power and authority to declare any ~~predatory animal, including coyote, that feeds upon, preys upon or destroys any poultry or livestock of any kind upon any public or private lands within their respective counties, or any rodent, jack-rabbit, gopher, ground squirrel, ericket, locust, grasshopper and other insect pests or plant disease causing organisms/agents or any other invertebrate organism that feeds, preys upon, or destroys any livestock, natural grasses, or cultivated crops of any kind upon any public or private lands within their respective counties,~~ of the following to be agricultural pests, and to take all steps that they may deem necessary to control such pests-:

(1) Any predatory animal, including coyote, that feeds on, preys on, or destroys any poultry or livestock on any public or private lands within their respective counties;

(2) Any rodent, including but not limited to mice, gophers, ground squirrels, or rats, such as the Norway rat and roof rat; any rabbits or hares; or any other mammal that feeds on, preys on, or destroys poultry or livestock operations, natural grasses, cultivated crops of any kind, or the earth on any public or private lands within their respective counties;

(3) Any insect, including but not limited to crickets, locusts, and grasshoppers, or any other invertebrate organism that feeds on, preys on, or destroys poultry or livestock operations, natural grasses, cultivated crops of any kind, or the earth on any public or private lands within their respective counties; and

(4) Any plant disease-causing organism or agent that feeds on, preys on, or destroys poultry or livestock operations, natural grasses, cultivated crops of any kind, or the earth on any public or private lands within their respective counties.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.